

#	Case Name	Tentative
50.	8500 Haven, LLC v. Sahara Construction Co. 2024-01413701	Attorney Bruce D. Rudman, Esq. and Catherine R. Finamore, Esq.'s Motion to be Relieved as Counsel of Record for Defendants Sahara Construction Co., Inc. and Paul Ventura is DENIED. The Declaration in support of the motion states "Our firm's monthly bills and correspondence have been sent to Sahara Construction Co., Inc. and Paul Ventura at the clients' address of 8523 Lankershim Blvd. Sun Valley, CA 91352. None of the mail has been returned to us as undeliverable. As a matter of fact, this firm's March 2026 bills were mailed to all clients . . . on April 3, 2026. As of the date of this declaration, neither the envelope sent to Mr. Ventura and Sahara Construction have been returned as undeliverable or return to sender address unknow[n]." (See ROA 139 ¶3(b)(1)(d).) As the court previously stated on April 20, 2026 (in response to a prior motion to be relieved): This does not comply with CRC 3.1362, subd. (d) which provides: "As used in this rule, "current" means that the address was confirmed within 30 days before the filing of the motion to be relieved. <u>Merely demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current...</u>" Moving attorney must demonstrate that the motion was served to the clients at their last known mailing address which has been confirmed as current. The above declaration is not sufficient to establish the address is current. If Moving Attorney is not able to confirm the address as current, Moving Attorney must set forth in the declaration in support of the motion what efforts have been undertaken to either confirm the address as current and/or locate a more current address for the client. See Judicial Council Form MC-052, ¶3(b)(2). For ease, the court quotes from the Rutter Group Practice Guide: "Civil Procedure Before Trial," Sections 9:388-391 (c) [9:388] Service: The notice of motion, declaration and proposed order must be served on the client and all other parties who have appeared in the case. [CRC 3.1362(d)]

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		1) [9:389] Special requirements where client served by mail: When the client is served by mail, the attorney's declaration must show that the client's address was confirmed within the last 30 days and how it was confirmed (i.e., by conversation, telephone, or mail with return receipt requested). [CRC 3.1362(d)] Merely stating the papers were sent to the client's last known address and were not returned will not itself be sufficient to demonstrate that the address is current. [CRC 3.1362(d)] [9:390] Reserved. 2) [9:391] Where client's address unknown: If the attorney is unable to confirm that the client's address is current, the attorney's declaration must state what was done in attempting to obtain a current address, such as: — mailing the motion papers to the client's last known address with return receipt requested; — calling the client's last known telephone number(s); — contacting persons familiar with the client (specify); — conducting a search (describe); and — other efforts, which must be specified. [CRC 3.1362(d)] Counsel must also justify why counsel should be relieved even if the client cannot be served with the moving papers. If a future motion is filed, counsel should read this order and the California Rules of Court, and comply. Moving attorney shall provide notice of this ruling.
51.	Licuaco v. Fawaz 2025-01477063	Cross-Defendant Cecile Licuaco's demurrer to the 1st through the 5th causes of action of the cross-complaint of Khaled Fawaz is SUSTAINED in its entirety with ten days leave to amend. <u>1st cause of action for Fraud</u>